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County: los-angeles

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Case Number: 25STCV33867 Hearing Date: August 25, 2026 Dept: R

#17

CHONG,
ET AL. v. SUN, ET AL.

CASE
NO.: 25STCV33867

HEARING: Tuesday, August 25, 2026, at 9:30 AM

Defendant

Uber Technologies, Inc.'s Unopposed Motion to Compel Arbitration and Stay Proceedings is GRANTED. This action is STAYED until conclusion of arbitration.

Moving

Party to give notice.

Background

On

November 19, 2025, Plaintiffs KEVIN KOON CHONG; LIGIA SARAH CHONG; and MEI YI TANG ("Plaintiffs") filed this action against Defendants TONGWEI SUN and UBER TECHNOLOGIES, INC. ("Uber").

Plaintiff's

Complaint asserts the following causes of action:

(1)

Motor Vehicle and

(2)

General Negligence

On July 28,

2026, Defendant Uber

filed the instant motion to compel arbitration.

Existence of Arbitration

Agreement Between the Parties

The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (*Engalia v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.)

"The FAA...preempts any state rule discriminating on its face against arbitration... [and] also displaces any rule that covertly accomplishes the same objective by disfavoring contracts that (oh so coincidentally) have the defining features of arbitration agreements." (*Kindred Nursing Centers Ltd. Partnership v. Clark* (2017) 137 S.Ct. 1421, 1426.) "But a court may 'invalidate an arbitration agreement based on 'generally applicable contract defenses' without violating the FAA, so long as it does not apply a generally applicable defense 'in a fashion that disfavors arbitration.' [Citation Omitted.]" (*Garcia v. KND Development 52, LLC* (2020) 58 Cal.App.5th 736, 744.)

In support of the instant Motion, Uber submits an Agreement to arbitrate the disputes at issue in this action. (Pare Decl., ¶ 14, Ex. D.) Plaintiff Kevin created an Uber account on January 11, 2017. (Pare Decl., ¶ 8.) On May 5, 2021, March 2, 2022, February 19, 2023, and May 20, 2026, Uber presented Plaintiff Kevin with an in-app blocking pop-up screen with the header "We've updated our terms." (Pare Decl., ¶ 9.) The in-app blocking pop-up screen

precluded the use of the Uber app unless or until a user clicked the checkbox on the screen and clicked the large “Confirm” button at the bottom of the screen. (Pare Decl., ¶ 10.) The in-app blocking pop-up screen expressly stated that: “By checking the box, I have reviewed and agree to the Terms of Use and acknowledge the Privacy Notice.” (Pare Decl., ¶ 11.) Uber’s records indicate that Plaintiff clicked the checkbox and tapped “Confirm” on May 5, 2021, March 2, 2022, February 19, 2023, and May 20, 2026. (Pare Decl., ¶ 13.)

Uber’s terms of service include an arbitration agreement which states, in relevant part:

(a) Agreement

to Binding Arbitration Between You and Uber.

...you and

Uber agree that any dispute, claim or controversy in any way arising out of or relating to (i) these Terms and prior versions of these Terms, or the existence, breach, termination, enforcement, interpretation, scope, waiver, or validity thereof, (ii) your access to or use of the Services at any time, (iii) incidents or accidents resulting in personal injury that you allege occurred in connection with your use of the Services, whether the dispute, claim or controversy occurred or accrued before or after the date you agreed to the Terms, or (iv) your relationship with Uber, will be settled by binding arbitration between you and Uber, and not in a court of law. This Agreement survives after your relationship with Uber ends.”

(Pare Decl., Ex. D.)

The Court finds Uber met its initial burden to prove the existence of a valid arbitration agreement.

The Court also finds there is sufficient evidence that Plaintiff Kevin accepted Uber’s terms of service and is thus bound by the Arbitration provision.

“[A] clickwrap agreement—one in which an internet user accepts a website’s terms of use by clicking an ‘I agree’ or ‘I accept’ button, with a link to the agreement readily available—is generally enforceable.” (Herzog v. Superior Court (2024) 101 Cal.App.5th 1280, 1286.) “[O]ne who accepts or signs an instrument, which on its face is a contract, is deemed to assent to all its terms, and

cannot escape liability on the ground that he [or she] has not read it."

(Ramos v.

Westlake Services LLC (2015) 242 Cal.App.4th 674, 686, internal quotes omitted.)

By checking or clicking a box indicating agreement near a link to the

contract's terms (a so-called "clickwrap" agreement), the

consumer generally manifests consent to agree to those

terms. (See, e.g., Lee v. Ticketmaster L.L.C. (9th Cir. 2020)

817 Fed.Appx. 393, 394 [a "clickwrap agreement" requires "users to click a

separate box indicating that they agree to its Terms"]; In re Holl (9th

Cir. 2019) 925 F.3d 1076, 1084 ["there is no question Holl affirmatively

assented to the UPS My Choice Service Terms. He checked a box

acknowledging as much."].)

Here, Uber's records indicate that by selecting "I Agree", Plaintiff Kevin

reviewed and agreed to Uber's terms of use.

Whether Plaintiffs LIGIA SARAH CHONG and MEI YI TANG are bound as

Nonsignatories

Generally, "a party is not obligated to arbitrate unless he or she has

expressly agreed to do so by entering into a valid and enforceable written

contract with the party who seeks arbitration." (Grey v. American Mgmt.

Services (2012) 204 Cal.App.4th 803, 808.) There are certain conditions in

which a non-signatory to an arbitration agreement may be compelled to

arbitrate: "(a) incorporation by reference; (b) assumption; (c) agency; (d)

veil-piercing or alter ego; (e) estoppel; and (f) [as a] third-party

beneficiary." (Suh v.

Superior Court (2010) 181 Cal.App.4th 1504, 1513.)

A non-signatory may be required to arbitrate a claim because

a benefit was conferred on the non-signatory as a result of the

contract, thus making that non-signatory a third-party

beneficiary. (County of Contra

Costa v. Kaiser Foundation Health (1996) 47 Cal.App.4th 237, 242.)

Here, Plaintiffs Ligia Sarah Chong and Mei Yi Tang received a benefit

by riding as passengers while Defendant Yongwei Sun drove for Uber. Therefore,

Plaintiffs Plaintiffs Ligia Sarah Chong and Mei Yi Tang are third-party

beneficiaries to the arbitration agreement.

Indeed, Uber's arbitration agreement holds:

This Arbitration

Agreement shall be binding upon, and shall include any claims brought by or against any third-parties, including but not limited to your spouses, heirs, third-party beneficiaries and assigns, where their underlying claims are in relation to your use of the Services. To the extent that any third-party beneficiary to this agreement brings claims against the Parties; those claims shall also be subject to this Arbitration Agreement.

(Pare Decl., Ex. D,
emphasis added.)

Furthermore,

the equitable estoppel doctrine extends to claims that are dependent upon or inextricably intertwined with the obligations imposed by the contract containing the arbitration clause. As with signatory plaintiffs, when nonsignatory plaintiffs are pursuing such claims, they should be bound by the arbitration clause in the contract which is integral to their claims." (JSM Tuscany, LLC v. Superior Court (2011) 193 Cal.App.4th 1222, 1241.) Plaintiffs claims arise from the services provided pursuant to Uber's Terms of Use. Therefore, equitable estoppel also binds Plaintiffs Ligia Sarah Chong and Mei Yi Tang to the arbitration agreement.

Delegation

Clause

The parties

may, by clear and unmistakable agreement, elect to have the arbitrator, rather than the Court, decide which grievances are arbitrable. (Rodriguez v. American Technologies, Inc. (2006) 135 Cal.App.4th 1110, 1123.)

A delegation

clause is enforceable unless it is revocable under the same defenses as any contract, such as fraud, duress, or unconscionability. (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 242.) However, any claim of unconscionability must be specific to the delegation clause. (Id. at p. 244.)

Here, Uber's

Terms state:

"The parties agree that the arbitrator ("Arbitrator"), and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement, including any claim that all or any part of this Arbitration Agreement is void or voidable. The Arbitrator shall also be responsible for determining all threshold arbitrability issues, including issues relating to whether the Terms are applicable, unconscionable or illusory and any defense to arbitration, including waiver, delay, laches, or estoppel. If there is a dispute about whether this Arbitration Agreement can be enforced or applies to a dispute, you and Uber agree that the arbitrator will decide that issue."

(Pare Decl., Ex. D.)

The parties

agreed to delegate issues of arbitrability to the arbitrator.

CONCLUSION

Based

on the foregoing, Uber's Motion to Compel Arbitration is GRANTED. This action is STAYED until conclusion of arbitration.